

# Chicago Tribune



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BREAKING NEWS AT CHICAGOTRIBUNE.COM

## Bovino deposition quickly went off rails

Transcript shows questioning of Border Patrol chief about use of force was marked by acrimony

By Jason Meisner, Gregory Royal Pratt and Madeline Buckley  
Chicago Tribune

The recent deposition of Border Patrol Cmdr. Gregory Bovino about the use of force by his immigration agents during Operation Midway Blitz seemed to go off the rails the minute they said “hello.”

“You didn’t want to shake (Bovino’s) hand when he walked into the room,” Department of Justice

attorney Sarmad Khojasteh told plaintiffs’ attorney Locke Bowman during an early break in the proceedings, according to a transcript made public late Monday. “That was noted ... Treat him with respect. Treat me with respect. You’re a professional.”

What followed was nearly seven hours of terse and sometimes evasive answers from Bovino, punctuated by an occasional longer explanation about the allegedly violent mobs attacking and threat-

ening immigration agents.

The questioning was almost constantly interrupted by bickering between the attorneys, mostly instigated by Khojasteh, who at one point called Bowman a “petulant old man.” Bowman, meanwhile, repeatedly accused Khojasteh of trying to hijack the proceedings with his drumbeat of objections and accusations, the transcript shows.

“Stop it. Just stop it,” an exasperated Bowman told Khojasteh at one point. “You don’t need to give speeches.”

The full transcript of Bovino’s deposition was made part of the

court record as attorneys in an ongoing lawsuit accused immigration agents with Border Patrol and U.S. Immigration and Customs Enforcement of routinely violating a restraining order issued by U.S. District Judge Sara Ellis limiting the use of force against protesters and media.

Ellis blasted Bovino for his antics and answers during the three-day deposition, issuing a scathing 233-page ruling earlier this month that described the tough-talking field general as “evasive” and accused him of



Border Patrol Cmdr. Gregory Bovino leaves the Dirksen U.S. Courthouse after testifying on Oct. 28. **BRIAN CASSELLA/CHICAGO TRIBUNE**

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A snowy owl sits on a fence near Montrose Beach on Monday in Chicago. **ARMANDO L. SANCHEZ/CHICAGO TRIBUNE PHOTOS**

## Why so early, birds?

The arrival of snowy owls to the Chicago lakefront over the weekend, about a month before they were expected, could signal a migratory boom

By Christiana Freitag  
Chicago Tribune

Over the weekend, hundreds of curious Chicagoans ventured to Lake Michigan beachfronts to witness a birding marvel: the early arrival of snowy owls.

Two snowy owls have been spotted at Montrose Point Bird Sanctuary and a third briefly at Rainbow Beach, according to the Chicago Ornithological Society.

These are earlier than usual in the season, said Edward Warden, president of the Chicago Ornithological Society.

The Arctic bird typically arrives in Chicago mid- to late December, Warden said. An unusually early arrival may signal an “irruption

year,” a migratory boom when large numbers of snowy owls migrate south during the winter months.

“A lot of people are certainly speculating if this is going to be a big year or not based on how early (the snowy owls) are here,” Warden said.

But predicting an irruption year can be difficult, said Warden. The phenomenon can be caused by many ecological factors, including a successful breeding season in the Arctic tundra.

“(Irruptions) are one of those sort of mysteries of science we’re still trying to untangle,” Warden said. “It’s pretty much a case of, you

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Cathy Heldt, of Evanston, photographs a snowy owl at Montrose Beach on Tuesday in Chicago. “I was worried I’d missed them,” she said. “When I walked up, I was like ‘oh they’re still there’ because I saw all the people.”

## Trump mulls ACA subsidy extension

Consideration spurs pushback from right, left as pressure rises

By Luke Broadwater, Sheryl Gay Stolberg and Zolan Kanno-Youngs  
The New York Times

WASHINGTON — President Donald Trump, who has repeatedly denounced the Affordable Care Act as a “disaster,” is considering backing an extension of insurance subsidies tied to the health law that are set to expire at the end of the year, according to a senior White House official.

Trump has not made a final decision, the official said on the condition of anonymity.

“Until President Trump makes an announcement himself, any reporting about the administration’s health care positions is mere speculation,” said Kush Desai, a White House spokesperson.

Extending the subsidies was at the center of the 43-day government shutdown, the longest in U.S. history, with Democrats insisting on continuing them while Republicans said they would make no commitment while the government was closed.

Now that the shutdown is over, Trump is under pressure to deliver on a plan to address health care costs, especially as the subsidies that millions of people rely on to pay for coverage are expiring. The president and his administration have also sought to hone a broader affordability message as many Americans struggle with living costs.

The White House official said Trump was considering whether to impose tougher restrictions on who would be eligible for the subsidies. The White House did not provide details on what those restrictions might be, though they could include capping eligibility for wealthier Americans and requiring all enrollees to pay a minimum premium.

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### Blue Line burn victim fundraiser

The family of Bethany MaGee has established a GoFundMe campaign to help offset her recovery costs after she was set on fire on a train. **Chicagoland, Page 3**

### Amazon to spend \$15B in Indiana

The company is planning the largest construction project in the state’s history, building data centers in northwest Indiana and creating 1,100 jobs, officials said. **Business**

### McCartney amazes in Chicago

The 83-years-young legend Paul McCartney presided over a joyful celebration that inspired, uplifted and unified Monday at United Center. **Arts & Living**

TODAY’S WEATHER



High 37 Low 26

Complete Chicagoland forecast on Page 14

\$4.00 city and suburbs and elsewhere  
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